



भारत सरकार / GOVERNMENT OF INDIA

पोत परिवहन मंत्रालय / MINISTRY OF SHIPPING

नौवहन महानिदेशालय / DIRECTORATE GENERAL OF SHIPPING

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Merchant Shipping Notice No.09 of 2014

NO: ENG/ISM/59(4)/97		Dated: 15.05.2014
Sub: International Safety Management (ISM) Code on Indian ships-reg.		
Ref: MS Notices 09/2003 & 28/2003 and Engineering Circulars 13/2003, 6/2004, 43/2004, 44/2004, 49/2004, 56/2005, 57/2005, 62/2005, 73/2005, 75/2006, 76/2006, 84/2007, 84A/2011, 85/2007, 85A/2011, 90/2007, 91/2008, 92/2008, 97/2008, 101/2008, 105/2009, 106/2009, 116/2009, 118/2010, 128/2010, 128A/2010, 134/2011, 07/2012, 08/2012 and 05/2013.		
1. <u>General:</u>		
The International Safety Management (ISM) Code for the Safe Operation of Ships and for Pollution Prevention was adopted by the International Maritime Organization (IMO) by Resolution A.741(18) as amended. The Code is implemented in India through the Merchant Shipping (Management for Safe Operation of Ships) Rules 2000, as amended.		
2. <u>Purpose:</u>		
To keep pace with the ever evolving nature of the regulatory regimes in maritime sector, including the ISM Code, this Directorate had issued over 30 notices/circulars related with Code, since its inception. This notice is being issued, integrating all these circulars and incorporating the requirements of the latest IMO Circulars / Guidelines in this regard.		
3. <u>Reference:</u>		
No.	Reference	Detail
1	MS Rules	Merchant Shipping (Management for the Safe Operation of Ships) Rules, 2000, as amended.
2	SOLAS	International Convention for the Safety of Life at Sea, 1974, as amended. Chapter IX – Management for the safe operation of ships.

3	ISM Code	Resolution A.741(18) as amended by MSC.104(73), MSC.179(79), MSC.195(80), MSC.273(85) and MSC 353(92), International Safety Management (ISM) Code.
4	Resolution A.1022(26)	Guidelines on implementation of the International Safety Management Code by Administrations.
5	MSC-MEPC.7/Circ.8	Revised guidelines for the operational implementation of the International Safety Management Code by Companies.
6	MSC-MEPC.7/Circ.6	Guidance on the qualification, training and experience necessary for undertaking the role of the designated person under the provisions of the International Safety Management Code.
7	MSC-MEPC.7/Circ.7	Guidance on near-miss reporting
8	MSC/Circ.1059-MEPC/Circ.401	Procedures Concerning Observed ISM Code Major Non-Conformities.
9	MSC.1/Circ. 1371, as amended	Refer to the List of codes, recommendations, guidelines and other safety and security-related non-mandatory instruments.

4. **Applicability:**

4.1 The Merchant Shipping (Management for Safe Operation of Ships) Rules 2000, as amended is applicable to the Indian ships as follows:-

4.1.1. Passenger ships (including high speed crafts) Special Trade Passenger (STP) ships regardless of tonnage;

4.1.2. Oil tankers, chemical tankers, gas carriers, bulk carriers and cargo high-speed craft, special purpose ships and other cargo ships of 500 GT and upwards, and

4.1.3. Self-propelled mobile offshore drilling units (MODUs) and Dynamically Positioned (DP) MODUs of 500 GT and above.

4.1.4. Self-propelled Mobile Offshore Units (MOUs) such as self-propelled FPSOs /FSUs etc of 500GT and above.

4.2 Ships carrying dry cargo in bulk but which do not meet the MSC.277(85) definition for a “Bulk Carrier” are to be typed as “Other Cargo Ships.”

4.3 This Notice supersedes the following MS Notices and DGS Engineering Circulars:

Sr.No	Notice/Circular No.	Reference
1	MS Notice 09 of 2003	No. 7-NT(13)/2002 dated 06 January, 2003
2	MS Notice 28 of 2003	No. ENG/ISM/59(4)/97 dated 08 October, 2003
3	Eng. Circ. 13 of 2003	No. ENG/ISM/59(4)/97 dated 02 nd July, 2003
4	Eng. Circ. 36 of 2004	No. ENG/ISM/59(4)/97 dated 16 th August, 2004
5	Eng. Circ. 43 of 2004	No. ENG/ISM/59(4)/97 dated 23 rd December, 2004

6	Eng. Circ. 44 of 2004	No. ENG/ISM/59(4)/97 dated 23 rd December, 2004
7	Eng. Circ. 49 of 2005	No. ENG/ISM/59(4)/97 dated 05 th May, 2005
8	Eng. Circ. 56 of 2005	No. ENG/ISM/59(4)/97 dated 11 th August, 2005
9	Eng. Circ. 57 of 2005	No. ENG/ISM/59(95)/03 dated 22 nd August, 2005
10	Eng. Circ. 62 of 2005	No. ENG/ISM/59(4)/97 dated 18 th November, 2005
11	Eng. Circ. 73 of 2005	No. ENG/ISM/59(4)/97 dated 20 th April 2005.
12	Eng. Circ. 75 of 2006	No. ENG/ISM/59(4)/97 dated 16 th June, 2006
13	Eng. Circ. 76 of 2006	No. ENG/ISM/59(4)/97 dated 06 th October, 2006
14	Eng. Circ. 84 of 2007	No. ENG/ISM/59(4)/97 dated 04 th May, 2007
15	Eng. Circ. 84A of 2011	No. ENG/ISM/59(4)/97 dated 13 th January, 2011
16	Eng. Circ. 85 of 2007	No. ENG/ISM/59(4)/97 dated 04 th May 2007
17	Eng. Circ. 85A of 2011	No. ENG/ISM/59(4)/97 dated 13 th January, 2011
18	Eng. Circ. 90 of 2007	No. ENG/ISM/59(4)/97 dated 13 th December, 2007
19	Eng. Circ. 91 of 2008	No. ENG/ISM/59(4)/97 dated 24 th March, 2008
20	Eng. Circ. 92 of 2008	No. ENG/ISM/59(4)/97 dated 24 th March, 2008
21	Eng. Circ. 97 of 2008	No. ENG/ISM/59(4)/97 dated 24 th October, 2008
22	Eng. Circ. 101 of 2008	No. ENG/ISM/59(4)/97 dated 29 th December, 2008
23	Eng. Circ. 105 of 2009	No. ENG/ISM/59(4)/97 dated 24 th March, 2009
24	Eng. Circ. 106 of 2009	No. ENG/ISM/59(4)/97 dated 16 th April, 2009
25	Eng. Circ. 116 of 2009	No. ENG/ISM/59(4)/97 dated 16 th December, 2009
26	Eng. Circ. 118 of 2010	No. ENG/ISM/59(4)/97 dated 01 st February, 2010
27	Eng. Circ. 128 of 2010	No. ENG/ISM/59(4)/97 dated 06 th October, 2010
28	Eng. Circ. 128A of 2010	No. ENG/ISM/59(4)/97 dated 06 th October, 2010
29	Eng. Circ. 134 of 2011	No. ENG/MISC-29(16)/2010 dated 09 th May, 2011
30	Eng. Circ. 07 of 2012	No. ENG/ISM/59(4)/97 dated 05 th December, 2012
31	Eng. Circ. 08 of 2012	No. ENG/ISM/59(4)/97 dated 14 th December, 2012
32	Eng. Circ. 05 of 2013	No. ENG/ISM/59(4)/97-VII dated 04 th July, 2013
33	Corrigendum to Engg Circ. 5/2013	No.ENG/ISM/59(4)/97-VII dated 25 th October, 2013

5. **Company Responsibilities & Authorities:**

5.1 **Company:**

5.1.1. *The “Company”, for the purpose of this Notice, means the owner of the ship or any other organization or person such as the Manager, or the Bareboat Charterer, who has assumed the responsibility for operation of the ship from the Ship-owner and who on assuming such responsibility has agreed in writing to the Directorate General of Shipping*

(DGS), to take over all the duties and responsibilities imposed by the ISM Code.

- 5.1.2. The “*Top Management*” for the purpose of this Notice means the highest level of management of the Company, who is authorized to provide decisions necessary to implement the Company’s objective for the effective implementation of Safety Management System (SMS) on its fleet and in this case, refers to the Chairman, Managing Director, President, Chief Executive Officer or equivalent, who represents the Board of Directors of the Company.
- 5.1.3. Any organization, including ship management companies, assuming such responsibilities as the Company under the ISM Code shall have sufficient wherewithal and capabilities, viz. **technical, financial and human resource**, readily at its disposal for the effective implementation of the Safety Management System (SMS) at all relevant levels in the Company, and shall ensure that adequate resources and shore based support are provided at all times and promptly to the ships under its ISM management. (ref: IMO Circular MSC-MEPC.7/Circ.8).
- 5.1.4. In order to reaffirm the above, every company who is holding a DOC issued by DGS or intending to obtain the same, except for the ships owned and operated directly by the Govt. owned companies/organizations, shall submit a ‘Self Declaration’ from top management (i.e Form ISM-14 or ISM-15), along with applicable enclosures, while applying for any DOC audit to the ISM cell of the Directorate.

5.2 Technical Management:

- 5.2.1. As per the international practice across the world, the organization vested with the technical management of ships may also assume the role as the ‘company’ for the purpose of the implementation of the ISM Code. Thus, any organization taking over such responsibilities, shall be duty-bound for the effective implementation of the SMS on such vessels and therefore shall be capable of demonstrating that the Organization has sufficient wherewithal and delegated authority for the said purpose. In order to confirm the above, both the registered owner of the ship and the prospective ISM manager shall be required to submit a joint undertaking to the Directorate in the prescribed format (ISM Form-01).
- 5.2.2. If the company has outsourced a part function such as crew management either from the ship owner or from a crew management company, the company (DOC holder) remains responsible for all such delegated functions and must enter into an agreement between owner of the ship or the crew managers, as the case may be. The agreement must ensure that the Master, officers and crew appointed by the owner or crew manager shall report to the Company (DoC holder) for all SMS matters, shall comply with the company instructions and have a direct link in all matters with the shore based designated person of the “company.” In case of crew managers, other than the owners, the firm shall be holding a valid licence as per MS (Recruitment and Placement of Seafarers) Rules 2005, as amended.
- 5.2.3. Notwithstanding any such part or full delegation of ISM responsibilities, the owner of the ship, shall have the ultimate responsibility in accordance with Sect.335 of M.S Act 1958,

as amended.

- 5.2.4. Further, the company, in all such cases of delegation of ISM functions should periodically verify and confirm that all those undertaking delegated ISM-related tasks are acting in conformity with the Company's responsibilities under the Code. (ref: IMO Resolution MSC 353(92)).

5.3 Change of Management

- 5.3.1. While recognizing the owner's prerogative to delegate the ISM functions to a competent manager of his choice, it has been noticed by the Directorate that frequent change of management affects the stability of the SMS and thereby safety of the ships under the management, often placing undesirable legal, technical and social concerns before the Directorate. All the ship-owners are therefore advised to exercise utmost diligence while selecting the ISM managers and in case of extreme circumstances warranting change of manager, the registered owners of the vessel shall make a formal application at least 7 working days prior to the actual change of management to the Directorate along with a declaration from the owners in ISM Form-11.
- 5.3.2. The Company planning to take over the management of a ship from another management shall have a valid DOC for the type of ship intending to take over and is advised to undertake a detailed pre-takeover inspection of the vessel and shall ensure the following prior to offering the vessel for the Interim SMC audit :-
- 5.3.2.1. that the vessel is in possession of all valid statutory certificates and shall be free of any statutory note or any over-due Conditions of Class (CoCs) as per IACS Recommendation 98;
 - 5.3.2.2. that the new joining ship-staff undergo the required familiarization on ship's lay out, loading / discharging, mooring, navigation and engine room procedures / operation with the existing staff;
 - 5.3.2.3. that a familiarization training is imparted to the ship staff on the SMS of the company with special emphasis on the onboard safety / emergency systems and procedures.
- 5.3.3. In case any management company, other than the owner, opts to discontinue the management of a ship, the "Company" may proceed so, in accordance with the bilateral agreement with the owners, under intimation to this Directorate. However, in all such cases, the management company shall be under obligation to continue to discharge its responsibilities as the 'Company' for a period of 3 months from the date of such intimation or until alternate arrangement for safe management of the ship is ensured by the owner, whichever is earlier. If the owner fails to make alternate arrangement for the safe management of the ship within the above mentioned three months, the registered owner of the vessel shall automatically be deemed to be the 'company' for the purpose of the ISM code and the responsibilities there-under.

5.4 Technical Management of ships from outside India:

- 5.4.1. Companies intending to manage Indian Flag vessels from outside India, but do not have registered office in India or not registered under Indian Companies Act are eligible for applying for the Indian DoC, provided the Technical Management Company abroad has a liasoning arrangement with an Indian registered company and hold a DOC for the "ship type" issued by the maritime administration or by one of the Recognized

Organizations authorized by the GOI, on behalf of a maritime administration where the Technical Management Company is located.

5.4.2. The Technical Management Company is required to submit its application in the prescribed format along with a duly notarized (in original) undertaking from self, liaison office in India and from the ship owner, stating the following:-

5.4.2.1. In case of legal disputes, the jurisdiction would be of an Indian Court of Law;

5.4.2.2. In case of any eventuality with respect to safety of the vessel, personnel and environment, the ship owner is equally responsible to deal with the above, and will not cite non-cooperation by the Technical Manager as a reason for not discharging his responsibility.

5.4.2.3. The Directorate General of Shipping has the right to withdraw the DOC at its discretion, by assigning the reasons which led to such withdrawal.

5.4.2.4. The Technical Management Company is required to take cognizance of the Merchant Shipping Act, 1958 as amended and all notifications and guidelines issued from time to time with respect to the ISM system.

5.4.3. The Technical Management Company is required to be responsible for and arrange for the conduct of the interim / initial audit of its office by the Administration for the purpose of DOC certification and thereafter for the subsequent periodical audits as applicable.

5.5 Change of name or office premises of the Company or Change of flag/ ownership/ Registry of the vessel:

5.5.1 In case any Company intends to change the name of the company or shift the offices premise due to operational reasons to a location other than that mentioned in the existing DoC, the Company may make a formal application in this regard to the DGS, in the company's new letterhead, along with the copy of the certificate of incorporation issued by the Registrar of Companies or the registered document for the new office premise, as the case may be. After incorporating necessary amendments to the SMS documents, Company may offer the new office for an Additional verification audit by the Administration, along with applicable fees in this regard. On receipt of satisfactory report from the audit team, the DGS will issue new DoC and SMC, as the case may be, with the new address / name, but with validity of the existing certificates.

5.5.2 In both the cases above, the additional audit referred therein can be clubbed with the annual / renewal DoC audits, if feasible, but in any case, the entire process for the change of name / address has to be completed within three months from the date of application for the same.

5.5.3 In case of change of flag or ownership or closure of registry of a vessel holding Indian SMC, the Company has to promptly intimate the same and surrender the original SMC of the vessel to the DGS, in any case within 15 days.

6. Safety Management System:

6.1 The ISM Code requires that Companies shall develop, implement and maintain a safety management system (SMS) which includes functional requirements as listed in section 1.4 of the ISM Code and, inter-alia, should:

- 6.1.1. designate a person or persons with direct access to the highest level of management who should monitor the safe operation of each ship (section 4);
- 6.1.2. ensure that adequate resources and shore-based support are provided to enable the designated person or persons to carry out their functions (section 3.3);
- 6.1.3. define and document the master's responsibility with regard to reviewing the safety management system and reporting its deficiencies to the shore-based management (section 5.1);
- 6.1.4. establish procedures for reporting and analysis of non-conformities, accidents and hazardous occurrences (section 9.1);
- 6.1.5. periodically evaluate the effectiveness of, and when needed, review of the safety management system (section 12.2); and
- 6.1.6. perform internal audits to verify whether safety management activities comply with the requirements of the safety management system (section 12.1).

6.2 SMS Manuals:

- 6.2.1. Every company has to develop their own SMS manuals considering the type of vessel and nature of operation of the vessel taking the following into consideration:-

- 6.2.1.1. The Apex Manual of the company is to be referred to as "Safety Management Manual" and is required to be in compliance with the various elements of the ISM Code, as amended. The manual must contain Policies, objectives, organization structure, responsibilities & authorities of relevant personnel, communication level and identification, risk assessment and control of processes of the company and on board the ship with respect to ISM Code. The manual shall be so prepared that frequent amendment to the manual is avoided.
- 6.2.1.2. In the event of any other operational manuals, instructions, checklists, forms etc. constituting a part of the Safety Management System, the apex manual shall contain cross references to all those documents.
- 6.2.1.3. The company SMS manuals shall address the applicable codes, recommendations, guidelines and other Safety and security-related non-mandatory instruments as per IMO Circular MSC.1/Circ.1371, as amended. Also, company SMS manuals shall address basic elements of Shipboard Occupational Health and Safety Programme (SOHSP) and Guidance of Fatigue Mitigation and Management (i.e. MSC/Circ. 1014) etc.).
- 6.2.1.4. The apex Safety Management Manual can have provision to indicate reference to other relevant manuals / documents viz. Environmental / Health / Quality Manual / Functional Guidelines etc. but not the other way round.
- 6.2.1.5. Companies may opt for Integrated Safety Management system covering ISM, ISO, HSE, OHSAS etc. to suit their commercial requirements subject to covering all the clauses of ISM Code in serial order with clear reference of respective clause in apex safety management manual.

7. Designated Person Ashore (DPA):

Role, Responsibility and qualification of DPA is to be broadly guided by the IMO Circular MSC-MEPC.7/Circ.6 "Guidance on the Qualifications, Training and Experience necessary for undertaking

the role of the Designated Person under the provisions of the International Safety Management (ISM) code” and as a minimum shall, in addition, comply with the following by all Indian DOC holders:-

7.1 Role and Responsibility of DPAs:

DPA is the key person to ensure effective implementation of the company's safety management system and requires to be based ashore whose influence and responsibilities should significantly affect the development and implementation of a safety culture within the Company and hence is required to be placed at a reasonably higher level (senior management position) in the company's organization chart. The DPA is required to effectively influence the mind-set, attitudes and behavior of subordinate shore staff to enhance support of vessel operations, as well as acting as a key link in the safety management chain reporting directly to the highest-level of management of his company.

7.2 Qualification of DPAs:

Every company should employ a DPA on regular basis complying with below mentioned requirements:-

Sr. No.	Category of Ships	Minimum Qualification	Desirable Experience
A	i. Passenger Ships, Passenger High Speed Craft, Cargo High Speed Craft, Oil Tanker, Chemical Tankers or Gas Carrier irrespective of size and ii. Bulk Carriers, Other Cargo Ships or Offshore Support Vessel (OSV) of above 3000 GT.	Holder of Indian Certificate of Competency (COC) or the COC Recognized by Govt. of India as Master (FG) or MEO Class-I or Naval Architects having minimum five years of relevant experience as ISM Lead Auditor with a Classification Society or Maritime Administration and holding a responsible position in the organization.	Master (FG), MEO Class I (Chief Engineer) with two years of shore experience at the management of relevant category of ships.
B	Bulk carriers or Other Cargo ships or Offshore Support Vessel (OSV) on the coast of India of less than 3000GT.	1. As for category 'A' or 2. Holder of Indian COC as Master (NCV), Chief Engineer (NCV) with adequate sea experience or Naval Architects having minimum two years experience as ISM Lead Auditor with a Classification Society or Maritime Administration and holding responsible position in the organization.	Master (FG), MEO Class I (Chief Engineer) with two years of sailing / shore experience at the management level.
C	MODUs or MOUs such as FPSOs / FSUs or other offshore support vessels such as DP diving support vessels	1. As for category 'A' or 2. Graduate Mechanical / Electrical / Marine or Petroleum Engineer having experience of atleast 05 years in the relevant field and holding a senior management	Master (FG), MEO Class I (Chief Engineer) with two years of experience in the relevant field.

7.3 Change of DPA:

7.3.1 In case of any change of DPA, the Company shall ensure that the new DPA meets the applicable qualification requirements as mentioned in para 7.2 of this notice, and shall promptly report the same to the Directorate in the prescribed format (Form ISM-12), along with self-attested copies of COC & CDC of the new DPA.

7.3.2 If the DPA unilaterally resigns or disassociates with the “company”, he may proceed so as per the term of his employment, but under prompt intimation to the DGS. If the Company fails to appoint suitable DPA, the DOC of the “company” shall automatically become null and void.

7.4 Alternate DPA (ADPA):

Every Company having more than three ships under its management shall designate an Alternate Designated Person (ADPA), to discharge the functions of the DPA in latter's absence or in similar emergency situations, whose qualification, as minimum, shall be as per IMO Circular MSC-MEPC.7/Circ.6.

8. Document of Compliance (DoC):

A Document of Compliance (DOC) is issued to a Company when the shore side aspects of the Safety Management System are found to comply with the requirements of the ISM Code. The DOC is specific to the ship type(s) operated by the Company and for which the SMS is implemented at the time of the audit. A copy of the relevant DOC should be placed on board each of the company's ships, which may be accepted as evidence that the Company's shore-side management structure complies with the requirements of the Code.

8.1 Application process:

8.1.1. Any Company intending to obtain an Indian DoC may make a formal application to that effect to the ISM Cell of the DGS, as follows:-

8.1.1.1. Company request letter on company letter head along with requisite fee.

8.1.1.2. Background of the Company.

8.1.1.3. Organization structure giving the qualification & experience of personnel including DPA qualification & experience along with the self-attested copies of COC and CDC.

8.1.1.4. Types of ships for which DOC is being applied.

8.1.1.5. A hard and soft copy of company SMS document (Apex) in compliance with ISM Code for the required ship type.

8.1.1.6. IMO Identification Number for the company issued by the IHS maritime on behalf of the IMO.

8.1.1.7. Copy of Registered document for the office premise.

8.1.1.8. Copy of Certificate of Incorporation issued by Registrar of Companies along with

copy of Memorandum/ Articles of Association.

8.1.1.9. Declaration of the company (i.e. Form ISM-14 or ISM-15).

8.1.2. After preliminary scrutiny of Company's application, the Company should submit its SMS manual to an auditor nominated by the Directorate for the purpose. The auditor, on satisfactory completion of preliminary scrutiny, shall endorse and return the manual to the company and forward appropriate recommendation to the ISM Cell of the Directorate within the period prescribed in the nomination letter.

8.2 Interim DoC certification:

8.2.1 An Interim DOC may be issued to facilitate initial implementation of the Code when:-

- a company is newly established,
- new ship types are to be added to an existing DOC

8.2.2 Towards the interim DoC certification, the ISM Cell of the Directorate, on satisfactory completion of para.8.1, may nominate an audit team to the Company's premises to verify that the Company has capabilities as has been mentioned in para 5.1& 5.2 of this notice, for the effective implementation of the ISM Code, for the identified ship type(s). The Company will need to prove that measures are in place to implement the full requirements of the ISM Code within the period of validity of the Interim DOC.

8.2.3 On receiving audit report from the auditor, the Company shall first address the non-conformities, if any, and then submit application to the DGS, with requisite fee for issuance of Interim DOC. An interim DoC shall be issued for a maximum period of twelve months from the date of completion of the audit or for a shorter period as deemed fit and recommended by the audit team.

8.2.4 The DOC audit will take place at the company's principal place of business. If a Company operates from more than one location where different safety management functions are performed, then, all these 'Branch offices' need to be offered for audit.

8.3 Initial, Annual, Renewal and Additional DOC audits:

8.3.1. Every company should make application for Initial, Annual, Renewal or Additional DOC audit, along with Form ISM-03 and applicable fees, at least one month prior to the proposed audit date to facilitate timely nomination of the auditor by the Directorate. However, it is desired that for the annual or renewal DOC audits, the company may submit the application on commencement of the window-period.

8.3.2. While applying for any such audit, the company should be capable to demonstrate, with relevant supporting records, the satisfactory functioning of the SMS on board a ship of the applicable type for at least 3 months since the preceding audit by the Administration, as applicable. The records in these cases may include, but not limited to the statutory, classification, personnel, maintenance and other relevant SMS records of all the vessels operating under the respective DoC.

8.3.3. On receipt of audit report from the lead auditor, the Company shall first address the non-conformities, if any to be addressed immediately, and then submit the application to the DGS with requisite fee for the issuance of full term DOC, as the case may be.

9. Safety Management Certificate (SMC) Certification:

Subsequent to a successful audit, a Safety Management Certificate (SMC) will be issued to each

individual ship provided that the company holds a valid DOC for the applicable type of ship. A copy of each SMC should be retained in the company's office records, the original being placed on board and filed along with all other statutory certificates.

9.1 Interim SMC Audits:

- 9.1.1. For Passenger/Special Trade Passenger Ships, the company which is holding passenger ship DOC shall make an application to the Directorate along with Forms ISM-01, ISM-02, ISM-11, ISM-12 and requisite fee. Forms ISM-01 & ISM-02 are not required, if the owner and the manager of the vessel are the same. After satisfactory scrutiny of application, DGS, will nominate an audit team for Interim SMC audit. On receiving audit report from the auditor, the Company shall first address the non-conformities, if any, and then submit application with requisite fee for the issuance of Interim SMC.
- 9.1.2. For Cargo Ships, MODUs and Special Purpose Ships (SPS), the company which is holding DOC for the respective type of ship may directly offer the ship to the Indian Register of Shipping for the interim audit. However, the Company shall submit duly filled Forms ISM-01, ISM-02, ISM-11 and ISM-12 to DGS, who shall then issue necessary authorization to the RO for undertaking the audit. Forms ISM-01 & ISM-02 are not required, if the owner and the manager of the vessel are the same. On satisfactory completion of the audit, IRS may issue Interim SMC Certificate to the vessel for 6 months and forward report to the DGS within 15 days.

9.2 Initial, Intermediate, & Renewal SMC Audits:

- 9.2.1. For Passenger/Special Trade Passenger Ships, company may make the application to the DGS along with requisite fee and form ISM-03 for initial, intermediate and renewal SMC audit, at least one month prior to the proposed audit date to facilitate timely nomination of the auditor by the Directorate. In case the DGS nominated auditor is not available on the date of the audit, the Principal Officer (PO) of the district where the audit is planned may nominate a suitably qualified alternate auditor for the audit. On receipt of the satisfactory audit report, DGS will issue SMC subject to payment of fees for the certificate.
- 9.2.2. For Cargo Ships, MODUs and Special Purpose Ships (SPS), the company may directly offer the ship to the Indian Register of Shipping for the initial and renewal SMC audits. After satisfactory completion of the audit, IRS may issue short term certificate valid for 5 months or may extend existing SMC for 5 months in case of Renewal SMC audit subject to audit completed within 3 months validity of the certificate. On receipt of satisfactory audit report from RO, DGS will issue full term SMC subject to payment of fees and satisfactory closures of NCs, if any.
- 9.2.3. For intermediate SMC audits of all ships in India, the company may make application along with requisite fee & form ISM-03 to the Principal Officer of the region where ship is operating or audit is planned. On satisfactory completion of the audit, PO/auditor may forward the audit report to the DGS within 10 working days. In case of ships exclusively trading in offshore fields or in foreign waters during the entire window period, the 'Company' may directly approach M/s IRS for the intermediate audit.
- 9.2.4. In all the above cases, the Company shall be in possession of a regular DoC (not Interim

certification) and the vessel shall be capable of demonstrating:-

- 9.2.4.1. the satisfactory functioning of the SMS on board a ship for at least 3 months in the preceding 12 months;
- 9.2.4.2. records of an internal audit carried out by the company, in this period;
- 9.2.4.3. the audit is performed under normal operating condition, ie. Not in dry-dock or lay-up.

9.3 Additional SMC Audits:

- 9.3.1. In case an Additional SMC audit is imposed by any RO or the Flag State surveyor, the concerned authority shall inform the same to the Directorate promptly with clear reasons for the action. The Directorate may review the case and advise any RO or Administration auditor to undertake the additional audit based on the merit of the case.
- 9.3.2. In instances where the additional SMS assessment of a ship has been imposed by any Port State Control (PSC) authority, M/s IRS may board the said ship at the earliest opportunity to confirm that immediate corrective measures have been taken to facilitate prompt release of the vessel from the PSC intervention and thereafter shall forward a detailed report to the DGS, with clear recommendation for long term measures to avoid recurrence, viz. additional SMC audit, DoC audit, FSI inspection etc, as necessary.
- 9.3.3. In both the cases above, ie. as stated in sub-para 9.3.1 & 9.3.2, it shall be obligatory on the Company to promptly report the matter to the DGS and to M/s IRS to facilitate additional SMC audit as necessary. However, this does not absolve the concerned Recognised Organization from its obligations to fulfill the Procedural Requirements (PRs) of the IACS as applicable.

9.4 Guidelines for auditors for carrying out Interim SMC audits:

- 9.4.1. Auditor must verify that all the requirements of ISM code are complied with during interim SMC audit for implementation of the company SMS except verification of SMS records.
(Note: SMS records mean SMS related records which may not be available on a new ship or on a ship undergoing change of flag / management, such as Internal / external audit reports, Safety Committee meeting reports, Non-Conformity reports, Near-miss reports etc.)
- 9.4.2. Auditor must verify that the vessel is in possession of all applicable statutory certificates, including of valid Document of Compliance /Interim Document of Compliance (DOC) for the applicable ship type, and that the vessel is free from any statutory note or overdue Conditions of Class (CoCs).
- 9.4.3. Auditor must verify that the safe manning is provided onboard as per the minimum safe manning document issued by the Administration and that all shipboard personnel are well aware of their role and responsibility in performing their functions as laid down in the company SMS and have clear understanding of the company's policy in implementation of the safety and pollution prevention aspects. Auditor may undertake realistic emergency preparedness drills and ensure that they are effectively implementable.
- 9.4.4. Auditor must verify that all shipboard important working drawings & documents are in English and clearly readable. In the event of such documents not being in English or

incomprehensible or illegible, a limited interim Safety Management Certificate may be issued for a maximum period of six months in order to facilitate the company to place onboard all drawings documents which are legible and in English.

9.4.5. In the event any major issues have been observed to be existing in the vessel's performance or its critical machinery or equipment during the audit or from records available on board, the auditor shall report it as NC / Major NC as appropriate and the RO shall then consult the Administration to decide on the further course of action as needed.

9.4.6. However, in case the vessel was not classed with an IACS member as approved by the GOI or, if the vessel is more than 15 years old from the date of delivery, this shall be immediately brought to the notice of the PSC/FSI cell at DGS by the auditor, and the DGS will depute an RO for a General Inspection (GI) or FSI by the administration or a detailed Change of Flag inspection, as the case may be, at the expense of the ship owner.

9.5 Reinstatement of SMC when window period lapses due to prolonged layup/docking:

9.5.1. Intermediate SMC audits: If for unavoidable reasons, vessels have to be laid up during the window-period of the intermediate SMC audits and the audit window closes during the said layup/docking period, the existing Safety Management Certificate becomes invalid. In such cases, the RO can undertake the "Intermediate SMC audit", under intimation to this Directorate, beyond the window period without any further approval from this Directorate, when the ship is not in dry dock/ lay-up and the audit scope would be to the extent of "initial" audit. On satisfactory completion of the said audit, the SMC, if decided to be validated, would be issued with an endorsement as "Validity restored after satisfactory conduct of audit as applicable for Initial audit". The validated SMC would be valid from the date of completion of the said initial audit for a period not exceeding the original date of expiry of existing SMC.

9.5.2. Renewal SMC audits: If Renewal SMC audit could not be completed before the expiry of existing Safety Management Certificate, the RO can undertake the "Renewal SMC audit" beyond the window-period without any further approval from this Directorate, provided the vessel was laid-up after the expiry of the certificate. However, the new Safety Management Certificate would be valid from the date of completion of the renewal audit to a date not exceeding five years from the date of expiry of the existing SMC.

10. Non Conformity and Major Non Conformity:

10.1 The Company shall submit the detailed Corrective Action (CA) along with Root Cause Analysis (RCA) and Preventive Actions (PA) proposed with regard to each of the Non-Conformities (NCs) raised during the audit to the concerned Lead Auditor (LA) for his acceptance within the time-limit prescribed by him, but in any case within three months from the date of audit. In case the Company fails to satisfactorily address the NCs within three months from the date of audit, necessary concurrence for its closure needs to be obtained from the DGS.

10.2 All major non-conformities are to be dealt with immediately as per MSC/Circ.1059-MEPC/Circ.401.

11. Suspension / Withdrawal of DOC:

Suspension or withdrawal of DOC of any company or SMC of any ship shall be governed by Merchant Shipping (Management for the Safe Operation of Ships) Rules, 2000, as amended.

12. ISM Forms:

The following forms are required to be used by the auditors (i.e Administration and RO auditors) and Companies for conducting various ISM related functions.

ISM 01	Declaration Form for Registered Owner/Bare Boat Charter and Company
ISM 02	Declaration Form for Company
ISM 03	Audit Request Form
ISM 04	Form for Company Interim/Initial/Annual/Renewal/Additional Audit Assessment Report
ISM 05	Form for Ship Interim/Initial/Intermediate/Renewal/Additional Audit Assessment Report
ISM 06	Form for Document Review Company/Ship
ISM 07	Form for Audit Schedule
ISM 08	Form for Non-Conformity/Observation/Major Non Conformity Report
ISM 09	Form for ISM Audit Log
ISM 10	Form for Auditor Monitoring Report
ISM 11	Form for Declaration of Company (Owner)
ISM 12	Form for Declaration of Designated Person
ISM 13	Form for Submission of SMC on Cancellation or withdrawal of Registry
ISM 14	Form for Self-declaration from the Top Management
ISM 15	Form for Self-declaration from the Company

13. Grievance redressal:

The Nodal Branch for the implementation of this Notice shall be the ISM Cell (Engineering Wing) of the Directorate, who may be contacted at ism-dgs@nic.in. The appellate authority for all matters related with the ISM Code in India shall be **the Director-General of Shipping**, who may be contacted by email: dgship-dgs@nic.in.

14. Settlement of Disputes:

In case of any disputes on the matters pertaining to the implementation of this Circular, the decision of the appellate authority shall be final and binding on all the parties concerned. However, the provisions contained in this circular are in addition to and not in derogation of the provisions of any other law or regulations in force in India.

This is issued with the approval of the Director-General of Shipping and Ex-officio Additional Secretary to the GOI and comes into effect from the date of issue of this notice.

Sd/-
(Ajithkumar Sukumaran)
Dy. Chief Surveyor with the GoI-cum-
Sr. Dy. Director General (Tech)

To,

1. The Principal Officer/ Mercantile Marine Department, Mumbai/Kolkata/ Chennai/ Kandla/Cochin.
2. The Surveyor-in-charge, Mercantile Marine Department, Goa/Jamnagar/Port Blair /Visakhapatnam /Tuticorin /Delhi /Haldia/ Paradip /Mangalore.
3. All Recognised Organizations.
4. Indian National Ship-owners' Association (INSA), Mumbai.
5. CS/NA/CSS/Jt.D-G.
6. Hindi Cell.
7. Guard file.
- 8.** Computer Cell.

DECLARATION FORM

NO. DGS/ISM - 01

(To be completed by authorized representatives of the owner / bareboat charterer and the company on first notification and when reporting any changes thereafter)

1. VESSEL

Name of Vessel:	Type of Vessel:
Official No. / Call Sign:	IMO Number:

2. OWNER / BAREBOAT CHARTERER

Registered Name: (Enclose copy of Certificate of Incorporation and Certificate of Registry of the vessel)		
Registered Address:	Tel. No.:	
	Fax No.:	
	E-mail:	

3. DECLARATION OF PARTICULARS OF THE COMPANY (ISM Code Ref.: 1.1.2)

Registered Name: (Enclose certificate of Incorporation)	
COMPANY ID NO.	
Registered Address:	Operation Office Address:
Tel. No.:	Tel. No.:
Fax No.:	Fax No.:
Telex No.:	Telex No.:
E-mail:	E-mail:

I, the undersigned, hereby declare and state for and on behalf of the **company** that the above information is true and correct and I am duly authorized by the **company** to provide the aforesaid information.

Name:	Place & Date:	
Signature:	Stamp:	

I, the undersigned, hereby declare and state for and on behalf of the **owner / bareboat charterer** that the above information is true and correct and I am duly authorized by the **owner / bareboat charterer** to provide the aforesaid information.

Name:	Place & Date:	
Signature:	Stamp:	

Certified by

Name & Stamp of the Registrar of Ship

Annex to Form No. DGS/ISM - 01

(To be completed by authorized representatives of the owner / bareboat charterer and the company on first notification and when reporting any changes thereafter)

ISM Code Ref.: 3.0

For and on behalf of the Owner / Bareboat Charterer:	For and on behalf of the Company:
I, the undersigned, hereby declare and state as below:	I, the undersigned, hereby declare and state as below:
1) The owner / bareboat charterer has agreement with the company for the operations of the vessel and to discharge of all duties, responsibilities and obligations of the owner / bareboat charterer, which fall within the scope of Chapter IX of the SOLAS, 1974 as amended and Merchant Shipping (Management for the Safe Operation of Ships) Rules, 2000, as amended from the date of the present declaration.	1) The company has accepted the agreement with the owner / bareboat charterer and undertake to carry out all aspects of the operation of the vessel and discharge all duties, responsibilities and obligations of the owner / bareboat charterer, which fall within the scope of Chapter IX of the SOLAS, 1974 as amended and Merchant Shipping (Management for the Safe Operation of Ships) Rules, 2000, as amended, from the date of the present declaration.
2) The owner / bareboat charterer has read and understood the Merchant Shipping (Management for the Safe Operation of Ships) Rules, 2000, as amended, and the requirement of the D.G. Shipping on the development, implementation and certification of SMS issued by the D.G. Shipping.	2) The company has received from the owner / bareboat charterer sufficient instructions, guidance, means and resources to the entire satisfaction of the company and arrangements have been made which enable and will enable the company to carry out and fulfill the duties, responsibilities and obligations which are hereby accepted and undertaken.
3) The owner / bareboat charterer accepts, agrees and undertakes to be responsible for the company (named overleaf).	3) The company accepts, agrees and undertakes to be bound, as far as the operation of the vessel and for any matter related thereto, by the applicable rules and regulations of the D.G. Shipping.
4) The above information is true and I am duly authorised to make this declaration for and on behalf of the owner / bareboat charterer.	4) The company has read and understood the Merchant Shipping (Management for the Safe Operation of Ships) Rules, 2000, as amended, and the requirements of the D.G. Shipping on the development, implementation and certification of SMS issued by the D.G. Shipping.
	5) The above information is true and correct and I am duly authorized to make this declaration for and on behalf of the company.
For and on behalf of the Owner / Bareboat Charterer:	For and on behalf of the Company:
Name:	Name:
Signature:	Signature:
Place & Date:	Place & Date:
Stamp:	Stamp:

DGS/ISM-01/Rev.02/ May-14

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DECLARATION
FORM NO. DGS/ISM – 02

(To be completed by authorized representatives of the company and also for reporting changes)

1. VESSEL

Name of Vessel:	Type of Vessel:
Official No. / Call Sign:	IMO Number:

2. PARTICULARS OF THE COMPANY (ISM Code Ref.: 1.1.2)

Registered Name: (Enclose certificate of Incorporation)	
COMPANY ID No.	
Registered Address:	Operation Office Address:
Tel. No.:	Tel. No.:
Fax No.:	Fax No.:
Telex No.:	Telex No.:
E-mail:	E-mail:

3. DESIGNATED PERSON (ISM Code Ref.: 4.0) (Enclose certified copy in proof of qualification, training and experience, in accordance with MS Notice 09 of 2014)

Designated Person:	Alternate Designated Person:
Name:	Name:
Position:	Position:
Identity Document:	Identity Document:
Office Address: (Place of work)	Office Address: (Place of Work)
Tel. No.:	Tel. No.:
Mobile No.:	Mobile No.:
Fax No.:	Fax No.:
Telex No.:	Telex No.:
E-mail:	E-mail:
AOH Tel. / Fax Nos.:	AOH Tel. / Fax Nos.:

4. IDENTIFICATION OF HIGHEST LEVEL OF MANAGEMENT (HLM)

Highest Level of Management:	Alternate to HLM:
Name:	Name:
Position:	Position:
Identity Document:	Identity Document:
Tel. No.:	Tel. No.:
Mobile No.:	Mobile No.:
Fax No.:	Fax No.:

Telex No.:	Telex No.:
E-mail:	E-mail:
AOH Tel. / Fax Nos.:	AOH Tel. / Fax Nos.:

5. BRANCH OFFICE(S)

Registered Name: (Enclose certificate of Incorporation)	Operation Office Address:
Registered Address:	
Tel. No.:	Tel. No.:
Fax No.:	Fax No.:
Telex No.:	Telex No.:
E-mail:	E-mail:

I, the undersigned, hereby declare and state for and on behalf of the company that the company has been incorporated and exists under the laws of the state and the officers of the company are those as indicate in the enclosed list / below, the company does operate branch offices as mentioned below / does not operate branch offices (strike if not applicable).

The above information is true and correct and I am duly authorized by the company and the aforesaid persons to provide the aforesaid information.

(to be completed if a counter signature is required)

Name:	Name:
Signature:	Signature:
Place & Date:	Place & Date:

Certified by

Name & Stamp of the Registrar of Ship

FORM NO. DGS/ISM – 02/Rev.02/May-14

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AUDIT REQUEST FORM

We request the Directorate General of Shipping to instruct its Auditors to assess our Safety Management System (SMS) to ISM Code on or around.....
(Minimum 30 days notice to be given from the date audit is requested)

The scope of assessment for which audit is requested:

DOC /SMC*

Interim / Initial / Annual / Intermediate / Renewal / Additional *

We agree to provide the Directorate General of Shipping with all the documents, information and facilities to carryout the above mentioned audit activities.

Details of fees submitted in favour of “the Directorate General of Shipping, Mumbai” towards carrying out the above audit are mentioned below.

<i>Details of payment of audit fees.....</i>
--

We also agree to pay any other fees as applicable for Audit and issuance of Certificate.

Particulars:

Name of Company:	
Company ID No.	
Company Address	
No. of Branch Offices and their details of location, covered under DOC, if any:	
Ship type for which audit is requested:	
Date of last audit, Name of Auditor (s) and status of NCs if any:	
Details of Additional DOC / SMC audit undertaken and the reason for such audit	

Indicate the details of detention of vessel under PSC / FSI (Name of vessel, Inspecting authority, name of MOU, port and date of inspection)	
Total No of Ships to be covered under the requested audit (Mention in Ship Type wise along with their name date and type of last audit along with SMC validity and endorsement)	
Present DOC Certificate Number and its date of validity (in case of multiple DOC, give date of validity for all DOC):	
Date of last DOC endorsement (s) (in case of multiple DOC, give date of endorsement for all DOC):	
Name of Vessel (s) / type of vessel / IMO No. / GT / yr. of built for which audit is requested:	
Location (s) of Audit:	

Name of Designated Person.....

Signature of Designated person

Address

Date of Application

Place

(*strike out which is not applicable)

FORM NO. DGS/ISM – 03/Rev.02/ May-14



DIRECTORATE GENERAL OF SHIPPING, GOVT. OF INDIA

COMPANY INTERIM/INITIAL/ANNUAL/RENEWAL/ADDL. AUDIT ASSESSMENT REPORT

Port:

Date:

COMPANY NAME:	
COMPANY ID NO.:	
OFFICE ADDRESS WITH TEL. NO. & FAX NO.:	
CONTACT PERSON: (Address of Branch Offices included in this assessment are to be given in additional sheet)	
DOC/INTERIM DOC NO.	ISSUED ON
ISSUED BY	VALID TILL
EXISTING SCOPE (SHIP TYPE)	LAST ENDORSEMENT DATE:
ASSESSMENT NOW BEING REPORTED 1ST/2ND/3RD/4TH ANNUAL/ADDITIONAL/RENEWAL/INTERIM/INITIAL	
TEAM LEADER:	AUDIT DATE(S):
TEAM MEMBER(s):	
NO. OF MAJOR NCs:	NO. OF NCs:
MAJOR NCs CLEARED: ☐ YES ☐ NO	ALL PREVIOUS NCs CLEARED: ☐ YES ☐ NO
NO. OF OBSERVATIONS:	NO. OF FINDINGS:
SUMMARY OF RECOMMENDATIONS:	
COPIES OF ALL NCs/OBS. (AS APPROPRIATE) ARE ATTACHED TO THIS REPORT: YES/NO/NIL	
ISSUE DOC/INTERIM DOC VALID FROM (date of assessment completion) FOR YEARS MONTHS	
REPORTED SCOPE (SHIP TYPE):	
ADDITIONAL ASSESSMENT REQUIREMENT?	☐ YES ☐ NO
DOC ENDORSED ☐ YES ☐ NO	
SIGNATURE OF TOP MANAGEMENT / DESIGNATED PERSON	SIGNATURE OF AUDIT TEAM LEADER / LEAD AUDITOR

Original copy of this form to be given to the auditee and photo copy to be forwarded to the ISM Cell, D.G. Shipping. Company must retain this report for at least five years from the date of issue.

Form No.: DGS/ISM-04/Rev. 02/May-14

Note: Strike out whichever is not applicable.

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DIRECTORATE GENERAL OF SHIPPING, GOVT. OF INDIA

SHIP INTERIM/INITIAL/INTERMEDIATE/RENEWAL/ADDL. AUDIT ASSESSMENT REPORT

Port:

Date:

NAME OF SHIP:		ASSESSED AT:	
PORT OF REGISTRY:		GT:	
OFFICIAL NO.:		SHIP TYPE:	
CALL SIGN:		IMO NO.:	
CLASS:		DATE OF BUILD:	
COMPANY NAME:			
COMPANY ID NO.:			
OFFICE ADDRESS INCLUDING TEL. NO. & FAX NO.:			
DOCUMENT OF COMPLIANCE NO.:			
ISSUED BY:		ISSUED ON:	
VALID TILL:		LAST ENDORSEMENT DATE OF DOC:	
SCOPE (SHIP TYPE)			
SMC NO.:		ISSUED ON: VALID TILL:	
ISSUED BY:		LAST ENDORSEMENT DATE OF SMC:	
TEAM LEADER:		AUDIT DATES:	
TEAM MEMBER(s):			
NO. OF MAJOR NCs:		NO. OF NCs:	
MAJOR NCs CLEARED: ☐ YES ☐ NO		ALL PREVIOUS NCs CLEARED: ☐ YES ☐ NO	
NO. OF OBSERVATIONS:		NO. OF FINDINGS:	
SUMMARY OF RECOMMENDATIONS:			
COPIES OF ALL NCs/OBS. (AS APPROPRIATE) ARE ATTACHED TO THIS REPORT: YES/NO/NIL			
ADDITIONAL ASSESSMENT REQUIREMENT? ☐ YES ☐ NO SMC ENDORSED ☐ YES ☐ NO			
DOC ENDORSED ☐ YES ☐ NO			
NAME AND SIGNATURE OF SHIP MASTER		SIGNATURE OF TEAM LEADER	

Retention period of this report is to be as per Company procedure but not less than 5 years

Form No.: DGS/ISM-05/Rev. 02/May-14

Note: Strike out whichever is not applicable.

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Port: _____
Date: _____

COMPANY ID NO.:
SHIP NAME:

DOCUMENT OF COMPLIANCE NO.:	ISSUED ON:	
ISSUED BY:	LAST ENDORSEMENT DATE:	
SCOPE (SHIP TYPES):		
LIST OF DOCUMENTS REVIEWED:		
TITLE	DATE	REVISION STATUS
TEAM LEADER'S COMMENT [continue on over leaf if space is not sufficient]:		

Form No.: DGS/ISM-06/Rev. 02/May-14 Note: Strike out whichever is not applicable

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DIRECTORATE GENERAL OF SHIPPING, GOVT. OF INDIA

ISM AUDIT SCHEDULE

Port:
Date:

Name of Vessel:

Name of Company:

Company ID No.:

Type of Audit: *INTERIM/INITIAL/ANNUAL/INTERMEDIATE/RENEWAL/ADDL.*

Language of Audit: ☐ English ☐ Other, please specify

Time	Audit Function/Department (Indicate audit team composition, if more than one team this column to be divided accordingly depending on the no of teams)
hrs.	OPENING MEETING
TEAM COMPOSITION —	
hrs.	
hrs.	
hrs.	
hrs.	
hrs.	
hrs.	
hrs.	
hrs.	
hrs.	
hrs.	
hrs.	
hrs.	CLOSING MEETING

Name of Audit Team
Leader and Members:

Identification of Reference Documents associated with the SMS

Signature of Team Leader

Note: 1) Use reverse of the audit schedule for listing of the personnel attending opening / closing meeting. 2) Strike out whichever is not applicable.

Audit Report Distribution

Original to Auditee (Master in case of Ship/DP in case of Company) Copies to Auditor (s), ISM Cell

Ref.: DGS/ISM-14/Rev.02/May-14

*Delete as appropriate

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DIRECTORATE GENERAL OF SHIPPING, GOVT. OF INDIA

NON CONFORMITY/OBSERVATION/MAJOR NON CONFORMITY REPORT

Port:

Date:

Type of Audit : *INTERIM/INITIAL/ANNUAL/INTERMEDIATE/RENEWAL/ADDL.*

Company Name :

NC/MAJOR NC/OBS NO.:

Company ID No.:

Ship Name:

Statement of NC/MAJOR NC/OBS

ISM Code Reference

*NC/Major NC/Observation*Proposed Completion Date :
(by Auditee)Prescribed Completion Date :
(by Team Leader)

Auditee (Sign.)

Team Leader (Sign.)

Audit Team Member(s) (Sign.)

Corrective/Preventive Action Report

Auditee/Company Representative (Sign. & Date)

Actual Completion Date :

Accepted / Down Graded

Team Leader
Sign. & DateTeam Member
Sign. & Date (Optional)

Comments

Form No.: DGS/ISM-08/Rev. 02/May-14

Note: 1) Strike out whichever is not applicable 2) Use overleaf if space is not sufficient for Corrective/Preventive Action.

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DIRECTORATE GENERAL OF SHIPPING, GOVT. OF INDIA

ISM AUDIT LOG

Port:

Date:

NAME OF AUDITOR:				
TYPE OF AUDIT: <i>INTERIM/INITIAL/ANNUAL/INTERMIATE/RENEWAL/ADDL. COMPANY/SHIP</i>				
COMPANY NAME:				
COMPANY ID NO.:				
HEAD OFFICE ADDRESS:				
(Addresses of Branch Offices included in this Audit are to be given in additional sheet)				
DETAIL OF OFFICE AUDIT				
OFFICE LOCATION	DATE & DURATION OF AUDIT DAYS	ROLE IN AUDIT (AUDITOR/LEAD AUDITOR)	TOTAL NO. IN TEAM	VERIFICATION BY AUDITEE (Name, Signature, Position, Stamp and Date)
DETAIL OF SHIP AUDIT				
NAME OF SHIP	DATE & DURATION OF AUDIT DAYS	ROLE IN AUDIT (AUDIT/LEAD AUDITOR)	TOTAL NO. IN TEAM	VERIFICATION BY AUDITEE (Name, Signature, Position, Stamp and Date)

Form No.: DGS/ISM-09/Rev. 02/May-14

Note: Strike out whichever is not applicable.

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**DIRECTORATE GENERAL OF SHIPPING, GOVT. OF INDIA****ISM CODE AUDITOR MONITORING REPORT**

- A. **NAME OF THE APPRAISEE** :
& his Role in Audit
(Mention Trainee LA/A)
- B. **Appraiser** : Team Leader/Observer
- C. **Audit Type** :
Interim*/Initial*/Annual*/Intermediate*/Renewal*/Addit
ional* Ship*/Company* Audit
- D. **Name of the Company/Ship** :
- E. **Date of Audit** :

OBSERVATION OF APPRAISER

1	Preparation for audit	Satisfactory	Needs improvement
2	Participation in document review	Satisfactory	Needs improvement
3	Conversant with Code Clauses & Requirements	Yes	No
4	Capable of wording relevant questions during audit	Yes	No
5	Interaction with auditee representative	Adequate	Inadequate
6	Discusses the non-conformity with confidence	Yes	No
7	Collecting objective evidence and analyzing the same	Effective	Needs improvement
8	Identifies and writes non-conformities correctly	Yes	No
9	Approach during audit	Professional	Needs improvement
10	Time schedule management	Effective	Needs improvement
11	Conduct of opening and closing meeting (Trainee TL only)	Satisfactory	Unsatisfactory
12	Interaction with other team members	Satisfactory	Unsatisfactory
13	Personal presentation	Satisfactory	Unsatisfactory
14	Preparation of report (Participation for all and main tasks for Trainee TL)	Satisfactory	Unsatisfactory

- 1) It is Possible that the appraiser; when he is part of the audit team i.e., TL or TM, may not have opportunity for appraisal of aspects which involve observing actual audit conduct e.g. items 4, 6, 7, 9 and 10. Whereas other aspects can be covered during common tasks and discussions. In such cases, indicate clearly the aspect which could not be covered during the appraisal by striking off the relevant items.

Mention whether the appraisal done when both appraiser and appraisee were auditing the same activity or area as a team during appraisal? YES ☐ NO ☐

If 'NO' give detail of activity/area under appraisee's audit during the appraisal and the time period for appraisal for those aspects of appraisal where audit conduct is to be witnessed e.g. items 4, 6, 7, 9 and 10.

- 2) When observation is negative indicate if the auditor concerned has been adequately instructed to ensure improvement and whether in your opinion requires formal training or additional experience.

COMMENTS: (Attach separate sheets if required)

* Delete as appropriate

LA Lead Auditor

A Auditor

TL Team Leader

Name and Signature of Appraiser

INTERNATIONAL SAFETY MANAGEMENT (ISM) CODE
DECLARATION OF SHIP OWNER OR BARE BOAT CHARTER

We understand that the "Company" means the Owner of a ship or any other organization or person such as the Manager, or the Bareboat Charterer, who has assumed the responsibility for operation of the ship from the Ship owner and who on assuming such responsibility has agreed to take over all the duties and responsibility imposed by the ISM Code.

The undersigned affirms that:

Name of Company	
Company ID No.	
Address	
Telephone Nos.	
FAX & E-mail	

is the Owner of the following Indian registered Ship(s):

Ship Name	Type of Ship and GT	Date of Build	Port of Registry	Official Number	Call Sign	IMO Number

In accordance with Clause 3.1 of ISM Code, if the entity who is responsible for the operation of the ship is other than the above stated Owner, the Owner must report the full name and details of such entity to the D.G. Shipping. If such is the case here, the undersigned affirms with due diligence that:

Name of Company	
Company ID No.	
Address	
Telephone Nos.	
FAX & E-mail	

is the "Company" responsible for complying with all the requirements of the ISM code for the above mentioned Indian registered Ship(s). The Company, for the purpose discharging its responsibilities thereof shall be provided with all the necessary authority and support by the owners of these ships.

The undersigned further affirms that any change in "Company" must be made in writing by Fax or otherwise within two (2) working days after such arrangement / agreement.

Signature: Title of top Management of Company (owner) _____

Place:

Date: Seal

Ref.: DGS/ISM-11/Rev.01/May-14

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INTERNATIONAL SAFETY MANAGEMENT (ISM) CODE
DECLARATION OF DESIGNATED PERSON
FORM NO. DGS/ISM - 12

To ensure the safe operation of each ship and to provide a link between the "Company" and those on board, every "Company" as appropriate shall designate a person or persons ashore having direct access to the highest level of management. The responsibility and authority of the designated person or persons shall include monitoring the safety and pollution prevention aspects of the operation of each ship and to ensure that adequate resources and shore based support are applied, as required.

The undersigned affirms that _____ and _____ as an alternate _____ assigned pursuant to IMO Resolution MSC. 104(73), Section 4, of the ISM Code, as the "Designated Person(s)" for the following Indian registered Ship(s) (Enclose documentary evidence showing that the designated person and the assistant / alternate designated person (s) have the relevant qualification, training and experience as required under MS Notice 07 of 2014) :

Ship Name	Type of Ship and GT	Date of Build	Port of Registry	Official Number	Call Sign	IMO Number

It is undertaken that the said "Designated Person(s)" will be available to the ISM cell of the Directorate General of Shipping, Mumbai at any time.

The full address of the "Designated Person(s)" to which official correspondence and materials may be sent:

Name of Company

Company ID No. Address

Telephone No. / Mobile phone No.

Fax number / E-mail address

Signature:

Name:

Designation of Designated Person

Place and Date: Seal:

The undersigned affirms and understands that any change in "Designated Person(s)" shall be intimated to the D.G. Shipping immediately and all the correspondences received or made by Designated person are on behalf of the undersigned.

Signature: _____

(Title of Top Management of Company)

Name:

Place and Date:

Seal

Ref.: DGS/ISM-12/Rev.01/May-14

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**INTERNATIONAL SAFETY MANAGEMENT (ISM) CODE SUBMISSION OF SMC ON
CANCELLATION OR WITHDRAWAL OF REGISTRY**
FORM NO. DGS/ISM - 13

This is to certify that the vessel has been sold for further trading / scrapping to M/s. , Address
(Please enclose the copy of the registry cancellation certificate and original and first copy of SMC
issued to the ship and indicate the name of the flag and port of registry of the ship if sold for further trading)

The particulars of ship are:

Ship Name	Type of Ship and GT	Date of Build	Port of Registry	Official Number	Call Sign	IMO Number

Company Name

Company ID No.

Address

Telephone No. / Fax No.

E-mail address

Signature:

Name:

Designation:

Place and Date:

Seal:

INTERNATIONAL SAFETY MANAGEMENT (ISM) CODE
DECLARATION FROM THE TOP MANAGEMENT

I, ----- presently serving as ----- of -----, hereby state that I represent the Top Management (Board of Directors) of the Company and is authorized to affirm as follows:-.

1. That the Top Management (Board of Directors) of M/s -----, recognizes that by virtue of being the holder of the Document of Compliance No----- issued by the Government of India on -----, M/s----- is the "Company" within the meaning of rule 2(h) of Merchant shipping (Management of Safe Operation of Ships) Rules 2000 as amended and the organization vested with the responsibility and the authority to ensure the safe operation of the ships under its management, and,
2. That the Board acknowledge that as the 'company' defined under the ISM code responsible for the safe operation of ships, we are duty-bound to ensure that the company has sufficient wherewithal, both technically and financially, to provide adequate and prompt shore based support to the vessels under its management at all times, and,
3. That the Board takes cognizance of the requirements relating to the Company's responsibility towards ensuring adequate resources under International Safety Management Code as defined in para 3.3 of the Resolution A.741(18) as amended by MSC.104(73), MSC.179(79), MSC.195(80) and MSC.273(85), and,
4. That towards compliance with the aforementioned requirements of the ISM Code, the Company has provided and will continue to provide adequate resources in terms of skilled manpower, material and services for safe operation and pollution prevention in compliance with all applicable rules and regulations. In support of this contention we are submitting herewith statement for the preceding financial year as vetted by our bonafide Chartered Accountants, and,
5. That the Company has paid, on time, necessary dues to the providers of all resources including seafarers, suppliers of stores, spares, bunkers etc and other service providers including Recognized Organizations, and,
6. That we are aware that the failure from the Company to provide timely resources and services to a vessel can render her unseaworthy and unsafe within the meaning of Section 334 and 336 of the Merchant Shipping Act 1958 as amended and that the Company is liable to be proceeded against, as per the applicable statutes, for such lapses.

Enclosed: As stated at Para. 4

(Chairman/Managing Director/Authorized Signatory)
 (Signature with Designation)
 M/s -----

Date:

INTERNATIONAL SAFETY MANAGEMENT (ISM) CODE
DECLARATION FROM THE COMPANY

I _____ presently serving as CEO/President of M/s. _____ (the Company) hereby state that I represent the Company and am authorized to affirm as follows:

1. That M/s _____, recognizes that by virtue of being the holder of the Document of Compliance No _____ issued by the Government of India on _____ M/s. _____ is the "Company" within the meaning of rule 2(h) of Merchant Shipping (Management of Safe Operation of Ships) Rules 2000 as amended and is vested with the responsibility and the authority to ensure the safe operation of the ships under its management, and
2. That the Company acknowledges that as the 'company' defined under the ISM code responsible for safe operation of ships, we are duty bound to ensure that the company has sufficient wherewithal, both technically and financially to provide adequate and prompt shore based support to the vessels under its management at all times, and
3. That the Company takes cognizance of the requirements relating to Company's responsibilities towards ensuring adequate resources under the International Safety Management Code as defined in Para 3.3 of the Resolution A.741(18) as amended by MSC. 104(73), MSC. 179(79), MSC. 195(80) and MSC. 273(85), and
4. That towards compliance with the aforementioned requirements of the ISM Code, the Company has provided and will continue to provide prompt and adequate resources in terms of skilled manpower material and services for safe operation and pollution prevention in compliance with all applicable rules and regulations. In support of this contention we are submitting herewith the Annual Report for the preceding financial year as vetted by our Statutory Auditors, and
5. Save and except disputed dues and commercial arrangements, the Company has paid, on time, necessary and legitimate dues to the providers of all services including seafarers, suppliers of stores, spares, bunkers etc and other service providers including Recognized Organizations, and
6. That the Company is aware that the failure of the Company to provide timely resources and services to a vessel can render her unseaworthy and unsafe within the meaning of relevant sections of the Merchant Shipping Act, 1958 as amended and that the Company is liable to be proceeded against as per the applicable statutes, for such lapses.
7. The Board of Directors of the Company have been kept informed of the contents of this Declaration.

Enclosed: As stated at Para 4

CEO/PRESIDENT/Authorized Signatory
 (Signature with Designation)
 M/s. _____

Date:

Ref.: DGS/ISM-15/Rev.01/May-14

*Delete as appropriate

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